LANDLORD TIPS & LEGAL COMPLIANCE

Maryland Landlord-Tenant Law & Eviction Guide: 2026 Compliance for Property Owners

POSTED ON OCTOBER 10, 2026 • WRITTEN BY PATRICK FREEZE • 10 MIN READ



Managing residential rental real estate in Maryland requires navigating one of the most strictly regulated housing environments in the Mid-Atlantic. Between statutory revisions to the Maryland Real Property Code, local county rental housing ordinances, and Baltimore City's rigorous rental licensing frameworks, private landlords and institutional investors face severe financial and legal liabilities for procedural oversights.

A single clerical omission on a pre-filing notice, an uncertified pre-1978 rental unit, or an improper security deposit deduction can invalidate court actions, trigger treble-damage statutory penalties, and delay rent recovery by months. This operational compliance manual provides residential property owners, real estate investors, and property managers with an authoritative roadmap for statutory adherence across Baltimore City, Baltimore County, Anne Arundel, Howard, and Montgomery County.

KEY TAKEAWAYS FOR MARYLAND LANDLORDS

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Bay Property Management Group is the premier property management company in the Mid-Atlantic, managing residential and multi-family homes across MD, PA, DC, and VA.

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- **Security Deposit Cap Reduced to 1 Month:** Under amendments to Maryland Real Property Code § 8-203 (effective October 1, 2024), residential security deposits are capped at one month's rent for standard market-rate leases, replacing the historic two-month threshold.
- **Mandatory 10-Day Pre-Filing Notice:** Property owners cannot file a "Failure to Pay Rent" complaint in District Court without first delivering a statutory 10-day written notice of intent to file with proof of mailing or personal delivery.
- **Extended Pre-Eviction Notice Period:** Statewide law requires at least 6 days of advance written notice before a sheriff executes a physical eviction warrant, expanding to 14 days in Anne Arundel, Howard, and Montgomery counties.
- **Baltimore City Rent Court Defense:** Landlords cannot obtain a judgment for possession or back rent in Baltimore City District Court without an active Baltimore City DHCD rental license and a current MDE lead inspection certificate on file.
- **Strict 45-Day Deposit Accounting:** Security deposits must be held in a segregated Maryland banking escrow account and returned with an itemized accounting statement within 45 days of lease surrender.

How to File a Renters Insurance Claim

Impact of Credit Scores on Rental Applications

Top Renovations That Increase Rent

What Are the Major Maryland Landlord-Tenant Statutory Updates in 2026?

Maryland law imposes strict limitations on security deposits, requires mandatory pre-filing notices for rent nonpayment, and demands standardized tenant rights disclosures on all residential leases. Property owners who fail to update their lease templates and administrative workflows risk having their court filings dismissed with prejudice.

Operational data from Bay Property Management Group indicates that over 42% of independent property owners transitioning to third-party management across Central Maryland operate with non-compliant lease clauses, most frequently outdated two-month security deposit requirements and deficient 10-day notice delivery protocols.

1. The One-Month Security Deposit Limitation (HB 598 / Chapter 754)

Effective October 1, 2024, the Maryland General Assembly amended Maryland Code, Real Property § 8-203. For all new residential lease agreements, landlords may not collect more than **one month's rent** as a security deposit.

The sole statutory exception applies to tenants who qualify for and receive utility assistance through the Maryland Department of Human Services, where the lease requires utility payments directly to the landlord, and both parties consent in writing to an amount up to two months. In standard residential leasing, demanding or holding more than one month's rent on a post-October 2024 lease is an illegal lease term subject to statutory damages up to three times the withheld excess plus reasonable attorney fees.

2. Mandatory Attachment of the Maryland Tenants' Bill of Rights

Property owners must attach the official Maryland Department of Housing and Community Development (DHCD) **Tenants' Bill of Rights** to every new residential lease. This standardized document summarizes statutory tenant rights regarding habitability standards, protection against retaliatory actions, lease renewal terms, and utility billing disclosures. Omitting this attachment creates a defense for tenants in administrative disputes.

3. Required 24-Hour Right-of-Entry Notice

While Maryland common law previously evaluated landlord entry under general covenants of quiet enjoyment, statewide statutes and local county housing codes now explicitly require landlords to provide **at least 24 hours of advance written notice** before entering an occupied unit for non-emergency inspections, scheduled maintenance, or prospective tenant tours. Unannounced visits without tenant permission constitute unlawful harassment.

How Does the Maryland Failure to Pay Rent Eviction Process Work?

To legally evict a tenant for nonpayment of rent in Maryland, landlords must strictly follow a statutory four-stage process: deliver a 10-day written pre-filing notice, file a formal complaint in District Court, obtain a Judgment for Possession, and schedule a Warrant of Restitution with the local sheriff. Self-help evictions—such as changing locks, shutting off utilities, or removing doors—are illegal criminal misdemeanors under Maryland law.

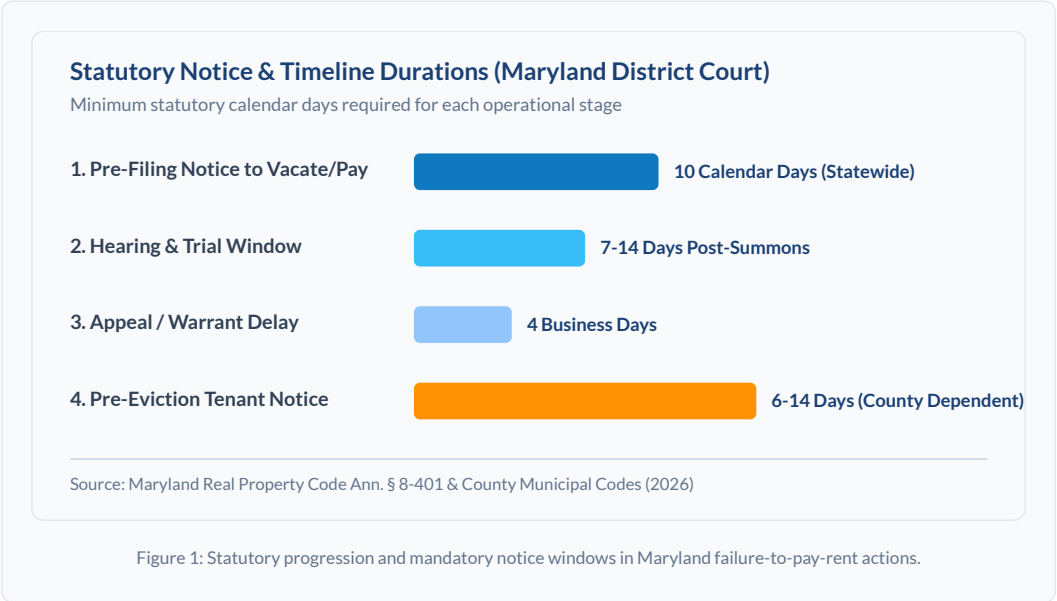


Figure 1: Statutory progression and mandatory notice windows in Maryland failure-to-pay-rent actions.

Stage 1: Delivering the 10-Day Notice of Intent to File

Under Maryland Real Property Code § 8-401, a landlord cannot file a Failure to Pay Rent action immediately after rent passes the due date. The landlord must first execute and deliver a formal written notice advising the tenant of the specific delinquent balance and declaring the intent to file in District Court if the balance is not paid within **10 calendar days**.

Service of this notice must be executed via certified mail with return receipt, personal hand delivery, or first-class mail with certificate of mailing paired with physical posting on the primary entry door.

Stage 2: District Court Complaint Filing (Form DC-CV-082)

If the tenant fails to cure the delinquency within 10 days, the landlord files a "Failure to Pay Rent" complaint (District Court Form DC-CV-082) in the county District Court where the property sits. The court assigns a docket number, generates a summons, and directs the local sheriff or constable to serve the tenant.

Stage 3: The Rent Court Hearing and Tenant's Right of Redemption

At the hearing, the presiding judge examines the signed lease agreement, rent accounting ledger, proof of timely 10-day notice, and local jurisdiction licensing certifications. If judgment is entered in favor of the landlord, the court grants a Judgment for Possession.

> **Field Practice Insight from Patrick Freeze:** Under Maryland law, tenants can exercise their right of redemption up to the moment the sheriff executes the physical eviction by tendering cash, certified cashier's checks, or money orders for the full judgment balance plus court costs. However, under Real Property § 8-401(g), if the landlord has obtained **three prior judgments for possession** against the tenant within the preceding 12 months in Baltimore City (or four in Maryland counties), the landlord can petition the court to enter the judgment **Without the Right of Redemption**. When granted, the tenant cannot redeem the tenancy and must vacate.

Stage 4: Warrant of Restitution & Mandatory Sheriff Notices

If the tenant does not pay the judgment amount or vacate within four business days, the landlord files for a **Warrant of Restitution**. Maryland law mandates advance written notice of the eviction date: minimum 6 calendar days statewide, expanding to 14 calendar days in Montgomery, Howard, and Anne Arundel counties.

What Are the Mandatory Licensing & Lead Paint Requirements in Baltimore City?

Baltimore City enforces strict preconditions before a landlord can access the court system. Under Baltimore City Code Article 13, § 5-4, every non-owner-occupied residential rental property must be registered and licensed through the Baltimore City Department of Housing and Community Development (DHCD).

In the Maryland Court of Appeals decision *Velicky v. The Copycat Building LLC* (476 Md. 397), the court confirmed that a property owner who fails to maintain an active, valid rental license cannot utilize the District Court summary eviction process to recover possession or back rent.

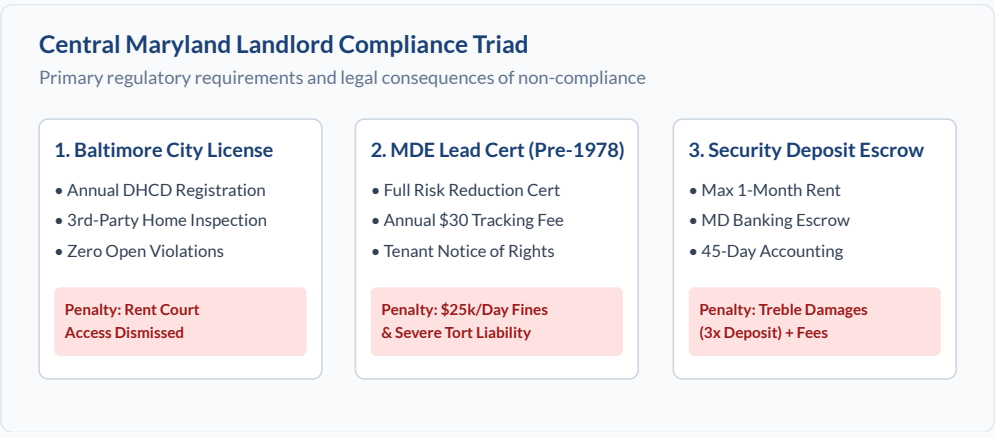


Figure 2: Three critical statutory hurdles for Maryland property owners and their enforcement consequences.

How Do Regional County Laws Vary Across Central Maryland?

While state law sets baseline rules, county ordinances in Central Maryland add substantial requirements:

- **Baltimore County (Article 35, Title 6):** All 1 to 6 unit rental buildings must be registered and pass county home inspections. Exemption applies only to buildings with 7+ units.
- **Montgomery County (Bill 15-23):** Strict rent stabilization caps annual rent increases at the Voluntary Rent Guideline (VRG) plus 3% (max 6%). Requires 90 days notice for rent increases and 14 days notice for evictions.
- **Anne Arundel & Howard Counties:** Local ordinances require 14 full calendar days of advance written notice before physical sheriff eviction execution.

How Must Maryland Landlords Handle Security Deposits and Escrow Accounting?

Maryland law mandates that security deposits must be deposited into an insured Maryland banking escrow account within 30 days of receipt and returned within 45 days of move-out with a formal itemized deduction statement. Commingling security deposits with operating funds or missing the 45-day deadline forfeits all rights to withhold damages and exposes the landlord to treble-damage liabilities.

How Professional Property Management Mitigates Regulatory Risk

Operational Area	Self-Managing Landlord	Bay Property Management Group
Lease Agreements	Outdated online templates	Attorney-reviewed Maryland leases
Security Deposit Limits	Often charges illegal 2-month cap	Enforces strict 1-month statutory cap
Escrow Compliance	Personal checking commingling	FDIC-insured dedicated escrow accounts
Eviction Filings	Frequent procedural dismissals	Automated 10-day notice tracking & court representation
Baltimore City & MDE	Prone to licensing lapses	Automated compliance tracking & inspection coordination
Maintenance Support	Delayed personal response	In-house 24/7 emergency dispatch team

Frequently Asked Questions

Can a Maryland landlord charge a 2-month security deposit in 2026?

No. Under Maryland Real Property Code § 8-203, standard residential security deposits are capped at **one month's rent**. The only exception applies when a tenant qualifies for Department of Human Services utility assistance and agrees in writing.

What happens if I file for eviction without sending a 10-day notice?

Your Failure to Pay Rent case will be dismissed immediately. Maryland courts require documented proof of service of the 10-day notice prior to filing.

Can an unlicensed landlord collect rent in Baltimore City?

No. Under Baltimore City Code and the *Velicky* ruling, unlicensed landlords cannot obtain judgments for possession or back rent in District Court.

Operating profitable rental real estate in Maryland requires treating statutory compliance as an integral operational discipline. For expert assistance in managing your rental assets across Baltimore City, Baltimore County, Anne Arundel, and surrounding markets, contact Bay Property Management Group today for a comprehensive portfolio consultation.



PATRICK FREEZE

Patrick Freeze is a licensed real estate broker and Baltimore native with over a decade of experience in the real estate and property management industry. He graduated from Dickinson College before starting Bay Property Management Group in 2009. Bay Property Management Group is the ultimate property management company, specializing in a wide range of properties, including single-family houses, portfolios of rental homes, and apartment buildings. Through experience and top-notch customer service, BMG is helping make property ownership the profitable and pleasurable experience it should be.

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